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Ofqual - response to letter before claim [REDACTED]

lauren moore <laurenmoore162@gmail.com>
To: Justin Madders <justin.madders.mp@parliament.uk>

Fri, Sep 19, 2025 at 7:53 PM

Dear Justin,

Further to Ofqual's legal response of **19 September 2025** (attached), I require your immediate action.**Position now established (by Ofqual's own correspondence):**

- The **RQF** (and previously the **QCF**) was **never designed or structured** for **SEN/neurodiverse learners with EHCPs**.
- Ofqual relies solely on "**reasonable adjustments**" to mainstream qualifications.
- There is **no SEN-specific pathway** and **no requirement** for SEND expertise in recognition criteria.
- This confirms a **systemic, historic gap** (pre-2015 QCF and post-2015 RQF).

Legal consequences (continuing breaches):

- **Equality Act 2010**: ss.19, 149 (indirect discrimination; PSED).
- **Children & Families Act 2014**: Part 3 (EHCP provision).
- **HRA 1998**: P1 Art.2 & Art.14.
- **UNCRPD Art.24**: equal access to vocational training.

Remedy (already built):

I am the **founder and creator** of the **LUNA SEN Regulator**, establishing a **Specialist RQF (SRQF)** and the **LUNA Learning Record (LLR)** for 14–16 SEN/EHCP learners, UK-wide. It is AI-managed (no public staffing/conflict) with independent EQA visits.

What I need you to do now:**1. Write to Gillian Keegan (Secretary of State for Education)**

- Seek **formal recognition** of the **LUNA SEN Regulator** and **SRQF** as the lawful remedy to the acknowledged gap.
- Confirm **UK-wide scope** (England, Wales, Scotland, NI) given equality and UNCRPD duties.

2. Write to Bridget Phillipson (Shadow Secretary of State for Education)

- Request **opposition scrutiny** and support to ensure the government cannot delay or deflect.

3. Write back to Ofqual's legal team (copy me)

- Record that Ofqual has **never** provided an SEN-structured framework and has relied only on adjustments.
- Ask for a **clear written confirmation** of (a) no SEN pathway; (b) no EHCP-embedded design; (c) reliance on reasonable adjustments.

4. Support with Cabinet Office (Naming & Approvals Committee)

- Back my appeal for luna-regulator.gov.uk (or luna-senregulator.gov.uk) as essential for public confidence and equal access.

Attachments for your letters:

- Ofqual legal response (19 Sept 2025).

- Annex A – Briefing Note (SRQF/LLR and statutory gap).

Given the prolonged delays and my health, I need your confirmation today that you will send these letters and copy me on the correspondence.

Kind regards,

Lauren Moore

Founder & Creator – LUNA SEN Regulator

[Quoted text hidden]

2 attachments



Ofqual - response to letter before claim (Lauren Moore) - 19 September 2025.pdf

136K



LUNA_Annex_A_Briefing_v2.docx

38K